

Akhilesh Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 December 2014 · Writ-C No. 64945 of 2014 · **Writ disposed of; liberty to approach Clause 7.10 Ombudsman/CGRF.**

HEADNOTE

Petitioner challenged a shift of electricity supply from one transformer to another, alleging irregular village supply. The Division Bench did not decide the merits and disposed of the writ with liberty to ventilate the grievance before the Ombudsman/Consumer Dispute Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005, directing that forum to decide any complaint by a reasoned speaking order.

FACTUAL SUMMARY

Akhilesh Singh filed a writ petition in the Allahabad High Court alleging that the respondents had disconnected electricity from the transformer that earlier supplied him and were now feeding the connection from a different transformer. He claimed this change had made supply to villagers at large irregular. The State of Uttar Pradesh and another were arrayed as respondents. The Division Bench of Rakesh Tiwari and Yashwant Varma JJ. did not examine the transformer change or the quality of supply on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum-ombudsman route for supply grievances

HOLDING

A grievance in respect of supply of electricity is to be taken to the Ombudsman/Consumer Dispute Redressal Forum constituted under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with liberty to approach that forum, which was to look into any complaint and decide it by a reasoned speaking order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LAWFULNESS OF SHIFTING SUPPLY FROM ONE TRANSFORMER TO ANOTHER AND OF THE ALLEGED IRREGULAR VILLAGE SUPPLY

The Court relegated the petitioner to the Clause 7.10 forum without examining the transformer change or quality of supply. ¶ 1